ATTORNEY OR PARTY WITHOUT ATTORNEY	STATE BAR NUMBER:	FOR COURT USE ONLY
NAME:		
FIRM NAME:		
STREET ADDRESS:		
CITY:	STATE: ZIP CODE:	
TELEPHONE NO.:	FAX NO.:	
EMAIL ADDRESS:		
ATTORNEY FOR *(name)*:		
SUPERIOR COURT OF CALIFORNIA, COUNTY OF		
STREET ADDRESS:		
MAILING ADDRESS:		
CITY AND ZIP CODE:		
PEOPLE OF THE STATE OF CALIFORNIA v. DEFENDANT:		CASE NUMBER:

ORDER AFTER PETITION/APPLICATION UNDER HEALTH AND SAFETY CODE SECTION 11361.8—ADULT CRIMES

☐ RESENTENCING OR DISMISSAL (Health & Saf. Code, § 11361.8(b))

☐ **REDESIGNATION OR DISMISSAL/SEALING (Health & Saf. Code, § 11361.8(f))**

FOR COURT USE ONLY

DATE:
TIME:
DEPARTMENT:

From the petition/application filed in this matter, the records of the court, and any other evidence presented in this matter, the court orders as follows:

1. ☐ **RESENTENCING GRANTED.**
The petitioner is eligible for the requested relief. The petition is **GRANTED**. The court hereby recalls the sentence imposed on the designated crime and enters the following additional orders:

   a. ☐ The following crime is resentenced as ☐ misdemeanor ☐ infraction
   (specify crime; more than one may be listed):

   b. ☐ The following sentence is imposed for the commission of the crime:

   c. ☐ The petitioner is given credit for time served of *(number of days):*

   d. ☐ Petitioner is required to complete a period of supervision of: ☐ months ☐ days
   ☐ parole ☐ postrelease community supervision ☐ mandatory supervision (Pen. Code, section 1170(h))
   ☐ formal probation ☐ informal probation

   e. ☐ The court releases the petitioner from any form of postconviction supervision.

   f. ☐ The court **DISMISSES** the following crime for the reason that the conviction is legally invalid:

   g. ☐ Other:

2. ☐ **REDESIGNATION GRANTED.**
The applicant is eligible for the requested relief. The application is **GRANTED.** The court hereby recalls the sentence imposed on the designated crime and enters the following additional orders:

   a. ☐ The following crime is redesignated as ☐ misdemeanor ☐ infraction
   (specify crime; more than one may be listed):

   b. ☐ The court **DISMISSES** the following crime for the reason that the conviction is legally invalid
   (specify crime; more than one may be listed):

   c. ☐ Other:

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3. ☐ **RESENTENCING/REDESIGNATION DENIED.**
The petitioner/applicant is ineligible for the requested relief. The request for resentencing, redesignation, dismissal, or sealing is **DENIED** as to crime: for the following reasons:

   a. ☐ The petitioner/applicant was convicted of an offense that is not eligible for the requested relief.

   b. ☐ The petitioner's/applicant's age at the time the crime was committed makes petitioner/applicant ineligible for the requested relief.

   c. ☐ The nature of the marijuana substance constituting the basis of the crime makes petitioner/applicant ineligible for the requested relief.

   d. ☐ The quantity of the marijuana substance constituting the basis of the crime makes petitioner/applicant ineligible for the requested relief.

   e. ☐ Although petitioner is eligible for relief, for reasons stated on the record, the court finds that resentencing of petitioner would pose an unreasonable risk of danger to public safety.

   f. ☐ Other:

4. **MISDEMEANOR/INFRACTION FOR ALL PURPOSES**
Any misdemeanor resentenced as an infraction as a result of this order will thereafter be an infraction for all purposes. Any felony conviction resentenced as a result of this order as a misdemeanor or infraction will be a misdemeanor or infraction for all purposes.

5. ☐ **REGISTRATION.** The petitioner/applicant is relieved from the requirement to register as a narcotics offender under Health and Safety Code section 11590.

6. ☐ **SEALING OF CONVICTION.** The court's record of conviction is ordered sealed. No access to the information shall be permitted without court order.

IT IS SO ORDERED.

Date:

_____
JUDICIAL OFFICER

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